

ENTERPRISE SAAS VENDOR AGREEMENT

This Enterprise SaaS Agreement is entered into on May 1, 2025 between CloudScale Analytics Inc. ("Vendor") and Global Enterprises Ltd. ("Customer").

1. SUBSCRIPTION GRANT AND USAGE

Vendor grants Customer a non-exclusive, non-transferable subscription license to access the Analytics Platform. Customer is authorized for up to 100 enterprise user accounts.

2. SERVICE LEVEL AGREEMENT (SLA) AND UPTIME

Vendor guarantees 99.9 percent monthly platform uptime excluding scheduled maintenance. Customer is entitled to a 10 percent monthly service credit if monthly uptime drops below 99.9 percent in any calendar month. Vendor shall respond to critical service tickets within 1 hour.

3. DATA SECURITY AND PRIVACY

Vendor shall maintain SOC 2 Type II compliance and AES-256 encryption for data in transit and at rest. Customer retains sole and exclusive ownership of all Customer Data uploaded to the platform.

4. FEES AND PAYMENT TERMS

Customer shall pay an annual subscription fee of \$48,000, invoiced annually in advance. Invoices are payable within Net 30 days. Unpaid invoices past 30 days are subject to service suspension.

5. LIMITATION OF LIABILITY

Vendor total aggregate liability under this Agreement shall not exceed the total fees paid in previous 12 months. Neither party shall be liable for indirect, punitive, or consequential damages.

6. TERM, RENEWAL, AND TERMINATION

Initial term is 12 months, auto-renewing for successive 1-year terms unless notice is given 60 days prior to renewal. Either party may terminate for material breach if not cured within 30 days written notice.

7. GOVERNING LAW

This Agreement shall be governed by the laws of the State of Delaware.